

SENATE BILL 2643

By Roberts

AN ACT to amend Tennessee Code Annotated, Title 36,
Chapter 6, Part 5, relative to parent visitation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 36, Chapter 6, Part 5, is amended by adding the following as a new section:

36-6-505. Additional periods of parenting time after denial occurs due to false allegations of abuse or neglect.

(a) Except as provided in subsection (b), a court may order additional periods of parenting time to compensate for a previous denial of visitation.

(b) If an affected parent can show that the other parent intentionally made or participated in false allegations of abuse against the affected parent, then the court shall order additional periods of parenting time to compensate the affected parent for a previous denial of parenting time because of an investigation by the department of children's services, or other agency, or a protective or restraining order, and the investigation did not result in a finding of abuse or neglect.

(c) The additional parenting time ordered under this section is intended to restore lost parenting time to the affected parent. The court-ordered additional parenting time must not disrupt the child's school attendance or regular activities. Any additional parenting time:

- (1) Must be of the same type and duration as the parenting time that was denied;
- (2) May include weekend, holiday, or summer parenting time; and

(3) Must occur no later than two (2) years from the date the court denied parenting time on grounds that did not result in a finding of abuse or neglect.

(d) The parent who was denied parenting time is entitled to request the dates for the additional parenting time, consistent with subdivision (c)(1).

(e) This section does not:

(1) Create a cause of action against the department of children's services, or any other agency; or

(2) Waive sovereign immunity to suit or liability.

SECTION 2. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to orders of visitation that are denied on or after that date.